AMENDED IN SENATE MAY 23, 2025

SENATE BILL No. 498

Introduced by Senator Becker

February 19, 2025

An act to add ~~Section 4025.3 to the Penal Code, and to add~~ Section 874 to the Welfare and Institutions Code, relating to hygiene products.

LEGISLATIVE COUNSEL'S DIGEST

SB 498, as amended, Becker. County detention: *juvenile facilities:* commissary.

Existing law requires that an inmate in a state prison who has maintained an inmate trust account with $25 or less for 30 consecutive days be deemed indigent and requires that an inmate who is indigent receive, among other things, basic supplies necessary for maintaining personal hygiene.

Existing law allows the sheriff of each county to operate a store in connection with the county jail, and authorizes the chief probation officer of each county to operate a store in connection with the juvenile hall or other county juvenile facilities, to sell confectionary, postage and writing materials, and toilet articles and supplies to ~~inmates, wards,~~ *wards* and juvenile detainees. Existing law also provides that all youth confined in juvenile facilities have specified rights, including, among others, the right to receive adequate personal hygiene items.

This bill would require that ~~indigent incarcerated persons and~~ indigent wards or detainees be provided basic hygiene products free of charge and require that those individuals have guaranteed access to hygiene products, upon their request. The bill would prohibit an ~~indigent incarcerated person or an~~ indigent ward or detainee from being denied access to hygiene products as a disciplinary measure. The bill would

prohibit debt from being accrued as a result of the provision of hygiene products to ~~indigent inmates and~~ indigent wards or detainees and would require any debt accrued for the provision of hygiene products prior to January 1, 2026, to be discharged. By expanding the duties of ~~local sheriffs and~~ probation officers, this bill would impose a state-mandated local program.

The California Constitution requires the state to reimburse local agencies and school districts for certain costs mandated by the state. Statutory provisions establish procedures for making that reimbursement.

This bill would provide that, if the Commission on State Mandates determines that the bill contains costs mandated by the state, reimbursement for those costs shall be made pursuant to the statutory provisions noted above.

Vote: majority. Appropriation: no. Fiscal committee: yes. State-mandated local program: yes.

The people of the State of California do enact as follows:

SECTION 1. The Legislature finds and declares all of the following:

(a) Hygiene is essential for public health and necessary for the welfare of incarcerated people.

(b) Readily accessible hygiene products are a basic need and essential for the dignity of all human beings.

(c) Indigent people incarcerated in county detention facilities are unable to access hygiene products in the commissary because they do not have the ability to pay, and, as a result, either end up accruing debt to be provided hygiene products by the facility or going without regular access to basic hygiene products needed to maintain their hygiene.

(d) Access to hygiene products should not be deprived as a disciplinary measure against indigent people and the ability to access hygiene products cannot be based on race, gender, physical traits, color, religious affiliation, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status.

~~SEC. 2. Section 4025.3 is added to the Penal Code, to read:~~

~~4025.3. (a) An indigent incarcerated person shall be provided basic hygiene products free of charge and shall have guaranteed access to hygiene products, upon their request.~~

~~(b) An indigent incarcerated person shall not be denied access to hygiene products as a disciplinary measure and the provision of hygiene products to an indigent incarcerated person shall not be used as a reward.~~

~~(c) Debt shall not accrue to an indigent incarcerated person for the provision of hygiene products, and any debt accrued prior to January 1, 2026, including associated fees, charges, and interest, for the provision of hygiene products shall be discharged.~~

~~(d) For purposes of this section, the following terms have the following meanings:~~

~~(1) "Hygiene products" means soap, toothpaste, toothbrushes, menstrual products, deodorant, lotion, disinfectant wipes, and single-bladed razors.~~

~~(2) "Indigent incarcerated person" means a person incarcerated in a county jail who has had twenty-five dollars ($25) or less in their inmate trust account over the last seven days.~~

~~SEC. 3.~~

SEC. 2. Section 874 is added to the Welfare and Institutions Code, to read:

874. (a) An indigent ward or detainee shall be provided basic hygiene products free of charge and shall have guaranteed access to hygiene products, upon their request.

(b) An indigent ward or detainee shall not be denied access to hygiene products as a disciplinary measure and the provision of hygiene products to an indigent ward or detainee shall not be used as a reward.

(c) Debt shall not accrue to an indigent ward or detainee for the provision of hygiene products, and any debt accrued prior to January 1, 2026, including associated fees, charges, and interest, for the provision of hygiene products shall be discharged.

(d) For purposes of this section, the following terms have the following meanings:

(1) "Hygiene products" means soap, toothpaste, toothbrushes, menstrual products, deodorant, lotion, disinfectant wipes, and single-bladed razors.

(2) "Indigent ward or detainee" means a ward or detainee confined in a county juvenile facility who has had twenty-five dollars ($25) or less in their trust account over the last seven days.

~~SEC. 4.~~

SEC. 3. If the Commission on State Mandates determines that this act contains costs mandated by the state, reimbursement to local agencies and school districts for those costs shall be made pursuant to Part 7 (commencing with Section 17500) of Division 4 of Title 2 of the Government Code.

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